

An Act

ENROLLED HOUSE
BILL NO. 4454

By: Newton of the House

and

Jech of the Senate

An Act relating to medical marijuana; amending 63 O.S. 2021, Section 423, as last amended by Section 8, Chapter 182, O.S.L. 2024 (63 O.S. Supp. 2025, Section 423), which relates to medical marijuana processors; providing certain restrictions on edible medical marijuana products; providing packaging restrictions for edible medical marijuana products; defining term; and providing an effective date.

SUBJECT: Medical marijuana

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 423, as last amended by Section 8, Chapter 182, O.S.L. 2024 (63 O.S. Supp. 2025, Section 423), is amended to read as follows:

Section 423. A. The Oklahoma Medical Marijuana Authority shall make available on its website in an easy-to-find location an application for a medical marijuana processing license. The Authority shall be authorized to issue two types of medical marijuana processor licenses based on the level of risk posed by the type of processing conducted:

1. Nonhazardous medical marijuana processor license; and
2. Hazardous medical marijuana processor license.

The application fee for a nonhazardous or hazardous medical marijuana processor license shall be paid by the applicant in the amounts provided for in Section 427.14 of this title. A method of payment shall be provided on the website of the Authority. The

Authority shall have ninety (90) business days to review the application; approve, reject, or deny the application; and send the approval, rejection, or denial letter stating the reasons for the rejection or denial to the applicant in the same method the application was submitted to the Authority.

B. The Authority shall approve all applications which meet the following criteria:

1. The applicant must be twenty-five (25) years of age or older;

2. The applicant, if applying as an individual, must show residency in this state;

3. All applying entities must show that all members, managers, and board members are Oklahoma residents of this state;

4. An applying entity may show ownership of nonstate residents, but that percentage ownership may not exceed twenty-five percent (25%);

5. All applying individuals or entities must be registered to conduct business in this state; and

6. All applicants must disclose all ownership interests in the processing operation.

Applicants with a nonviolent felony conviction in the last two (2) years, any other felony conviction in the last five (5) years, inmates in the custody of the Department of Corrections or any person currently incarcerated shall not qualify for a medical marijuana processing license.

C. 1. A licensed processor may take marijuana plants and distill or process these plants into concentrates, edibles, and other forms for consumption.

2. The Executive Director of the Authority shall make available a set of standards which shall be used by licensed processors in the preparation of edible marijuana products. The standards should be in line with current food preparation guidelines. No excessive or punitive rules may be established by the Executive Director.

3. Up to two times a year, the Authority may inspect a processing operation and determine its compliance with the preparation standards. If deficiencies are found, a written report of the deficiency shall be issued to the licensed processor. The licensed processor shall have one (1) month to correct the deficiency or be subject to a fine of Five Hundred Dollars (\$500.00) for each deficiency.

4. A licensed processor may sell marijuana products it creates to a licensed dispensary or any other licensed processor. All sales by a licensed processor shall be considered wholesale sales and shall not be subject to taxation.

5. Under no circumstances may a licensed processor sell marijuana or any marijuana product directly to a licensed medical marijuana patient or licensed caregiver. However, a licensed processor may process cannabis into a concentrated form for a licensed medical marijuana patient for a fee.

6. Licensed processors shall be required to complete a monthly yield and sales report to the Authority. This report shall be due on the fifteenth of each month and shall provide reporting on the previous month. This report shall detail the amount of marijuana and medical marijuana products purchased in pounds, the amount of marijuana cooked or processed in pounds, and the amount of waste in pounds. Additionally, this report shall show total wholesale sales in dollars. The Authority shall have oversight and auditing responsibilities to ensure that all marijuana being processed is accounted for.

7. Packages of edible medical marijuana products processed, produced, packaged, or transferred by licensed medical marijuana processors shall clearly indicate the number of servings of tetrahydrocannabinol in each package and the amount of tetrahydrocannabinol in each individual serving. Drinks or beverages shall clearly indicate on the container the number of servings in each drink or beverage and the amount of tetrahydrocannabinol in each individual serving. Edible medical marijuana products shall not:

- a. be attractive to children. As used in this subparagraph, "attractive to children" means the use of any image or words designed or likely to appeal to persons younger than eighteen (18) years of age including, but not limited to, cartoons, toys,

animals, food, or depictions of persons younger than eighteen (18) years of age, any other likeness to images, characters, or phrases that are popularly used to advertise to persons younger than eighteen (18) years of age, or any reasonable likeness to commercially available candy,

b. be manufactured in the shape of humans, cartoons, or animals, or

c. be manufactured in a form that bears any reasonable resemblance to products available for consumption as commercially available candy.

D. The Authority shall oversee the inspection and compliance of licensed processors producing products with marijuana as an additive. If it becomes permissible under federal law, marijuana may be moved across state lines.

E. Any device used for the processing or consumption of medical marijuana shall be considered legal to be sold, manufactured, distributed and possessed. No merchant, wholesaler, manufacturer or individual may be unduly harassed or prosecuted for selling, manufacturing or possessing marijuana paraphernalia.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 9th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 4th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____